

BEFORE THE IOWA BOARD OF SOCIAL WORK

RE:
Social Work Independent Level License of

ARACELY SCHUTTERS
License No. 06292
Respondent

CASE NO. 18-0016

**COMBINED STATEMENT OF
CHARGES, SETTLEMENT
AGREEMENT, AND FINAL ORDER**

COME NOW the Iowa Board of Social Work ("Board") and Aracely Schutters ("Respondent"), 2911 Dundee Lane, Bettendorf IA, 52722, and enter into this Combined Statement of Charges, Settlement Agreement, and Final Order ("Order") pursuant to Iowa Code sections 17A.10 and 272C.3(4), and 645 IAC chapter 12. The Board has jurisdiction over Respondent and the subject matter of this case pursuant to Iowa Code chapters 17A, 147, 154C, and 272C, and 645 IAC chapter 283.

A. STATEMENT OF CHARGES

COUNT I

1. Respondent is charged with conviction of a crime related to the profession or occupation of the licensee or the conviction of any crime that would affect the licensee's ability to practice within the profession and may be disciplined pursuant to Iowa Code section 147.55(5) and 645 IAC 283.2(11).

B. FACTUAL CIRCUMSTANCES

2. Respondent holds Iowa license number 06292 to practice social work at the independent level, which is currently active through December 31, 2018.

3. On February 21, 2018, Respondent pled guilty to sexual exploitation by a counselor or therapist in Scott County, Iowa.

C. SETTLEMENT AGREEMENT AND FINAL ORDER

4. The Board has jurisdiction over the parties and the subject matter of these proceedings.

5. Respondent admits the allegations in the Statement of Charges and acknowledges that the allegations, if proven in a contested case hearing, would constitute grounds for the discipline agreed to in this Order.

6. Execution of this Order constitutes the resolution of a contested case. Respondent has a right to hearing before the Board on the charges, but Respondent waives the right to hearing and all attendant rights, including the right to appeal or seek judicial review of the Board's action, by freely and voluntarily entering into this Order. Once entered, this Order shall have the force and effect of a disciplinary order entered following a contested case hearing.

7. Respondent acknowledges that she has the right to be represented by counsel on this matter.

8. Respondent agrees that the State's counsel may present this Order to the Board and may have *ex parte* communications with the Board while presenting it.

9. This Order is subject to approval by a majority of the full Board. If the Board does not approve this Order, it shall be of no force or effect to either party, and shall not be admissible for any purpose in further proceedings in this matter. If the Board approves this Order, it shall be the full and final resolution of this matter.

10. This Order shall be part of Respondent's permanent record and shall be considered by the Board in determining the nature and severity of any disciplinary action to be imposed in the event of any future violations.

11. This Order shall not be binding as to any new complaints received by the Board.

12. Respondent understands the Board is required by federal law to report any adverse action to the National Practitioner Data Bank.

13. This Order, when fully executed, is a public record and is available for inspection and copying in accordance with the requirements of Iowa Code chapters 22 and 272C.

14. The Board's approval of this Order shall constitute a **FINAL ORDER** of the Board.

IT IS THEREFORE ORDERED:

15. Respondent agrees to **VOLUNTARILY SURRENDER** her social work license to resolve this matter. This voluntary surrender is considered discipline and, when accepted by the Board, has the same force and effect as an order of revocation under 645 IAC 12.1(5).

16. Respondent agrees not to use any words or titles which imply or represent that she is a licensed social worker, or to otherwise hold herself out to the public as a licensed social worker, or to engage in the practice of social for which a license is required in the State of Iowa unless her license is reinstated. Respondent may not request reinstatement for at least one (1) year from the date of this Order.

17. Respondent shall return her social work license to the Board immediately upon the Board's approval of this Order.

18. Should Respondent violate the terms of this Order, the Board may initiate action to impose other licensee discipline as authorized by Iowa Code chapters 147, 154C, and 272C and 645 IAC chapters 13 and 283.

This Combined Statement of Charges, Settlement Agreement, and Final Order is voluntarily submitted by Respondent to the Board for its consideration on the ____ day of _____, 2018.


ARACELY SCHUTTERS
Respondent

This Combined Statement of Charges, Settlement Agreement, and Final Order is approved by the Iowa Board of Social Work on the 14th day of May, 2018.


Chairperson
Iowa Board of Social Work